

CHAPTER 52.

An Act to enable the existing practice as to cinematograph and musical entertainments on Sundays to be continued temporarily and to make temporary provision as to the enforcement of the enactments relating to Sunday observance. [7th October 1931.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Continu-
ance of
practice as
to cinema-
tograph and
musical
entertain-
ments.
9 Edw. 7.
c. 30.

1.—(1) Where in any area places licensed by the authority having power in that area to issue licences under the Cinematograph Act, 1909, or by the authority having power in that area to issue licences under any enactment for the regulation of places kept or ordinarily used for public dancing, singing, music, or other public entertainment of the like kind, have, within the period of one year before the passing of this Act, been opened and used on Sundays for the purpose of cinematograph entertainments or for the purpose of musical entertainments in pursuance of arrangements purported to have been made with those authorities respectively, then, notwithstanding anything in any enactment relating to Sunday observance, those authorities respectively may, while this Act is in force, allow places in that area licensed under the said enactments to be opened and used on Sundays for the purpose of cinematograph entertainments or for the purpose of musical entertainments subject to such conditions as the authority may think fit to impose.

(2) In this section—

“Cinematograph entertainment” means the exhibition of pictures or other optical effects by means of a cinematograph or other similar apparatus with or without the mechanical reproduction of sound :

“Musical entertainment” means a concert or similar entertainment consisting of the performance of music, with or without singing or recitation.

2. Any action or other legal proceeding for any penalty under the Sunday Observance Act, 1780, instituted before the passing of this Act shall be discharged and made void, subject, in the case of a proceeding instituted before the second day of April, nineteen hundred and thirty-one, to such order as to costs as the court or a judge thereof may think fit to make; and no such proceeding shall, while this Act is in force, be instituted without the consent of the Attorney-General or the Solicitor-General.

Provisions
as to en-
forcement
of 21 Geo. 3.
c. 49.

3.—(1) This Act may be cited as the Sunday Performances (Temporary Regulation) Act, 1931.

Short title,
extent and
duration.

(2) This Act shall not extend to Scotland or to Northern Ireland.

(3) This Act shall continue in force for the period of one year after the passing thereof and no longer.
